

HOUSE BILL 661

By White

AN ACT to amend Tennessee Code Annotated, Title 38;
Title 39 and Title 40, relative to the
Comprehensive Assault Crime Intervention Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Comprehensive Assault Crime Intervention Act."

SECTION 2. Tennessee Code Annotated, Section 39-13-111(d), is amended by deleting the subsection and substituting:

(d) As part of a defendant's alternative sentencing for a violation of this section:

(1) The sentencing judge shall direct the defendant to complete an available counseling program that addresses violence and control issues including, but not limited to, a batterer's intervention program that meets the requirements in § 38-12-110 and has been certified by the domestic violence state coordinating council. A batterer's intervention program, certified or noncertified, is not deemed complete until the full term of the program is completed, and a judge shall not authorize a defendant to attend less than the full term of a program as part of a plea agreement or otherwise. The defendant's knowing failure to complete such an intervention program is considered a violation of the defendant's alternative sentence program and the sentencing judge may revoke the defendant's participation in such program and order execution of sentence; and

(2) The sentencing judge may direct the defendant to complete a drug or alcohol treatment program.

SECTION 3. Tennessee Code Annotated, Section 40-32-101, is amended by deleting subdivision (g)(1)(B)(i) and substituting:

(i) Section 39-13-101(a)(1) and (2) — Assault;

SECTION 4. Tennessee Code Annotated, Section 38-12-110, is amended by adding the following new subsection:

(d) The council shall prescribe the term of the batterer's intervention programs to meet for a minimum of twenty-six (26) weeks and not more than forty eight (48) weeks. Each meeting must be at least three (3) hours long. The ratio of participants to intervention counselors must be not more than six (6) participants to one (1) counselor, with not more than ten (10) participants in each course.

SECTION 5. Tennessee Code Annotated, Section 39-17-315, is amended by adding the following new subsection:

(n) In addition to any other punishment that may be imposed for a violation of this section, the sentencing judge shall require the defendant to attend an individual counseling program that addresses violence and control issues, including a batterer's intervention program that has been certified by the domestic violence state coordinating council, pursuant to § 38-12-110.

SECTION 6. Tennessee Code Annotated, Section 39-13-101, is amended by adding the following new subsection:

(d) In addition to any other punishment that may be imposed for a violation of this section, the sentencing judge shall require the defendant to attend an individual counseling program that addresses violence and control issues, including a batterer's intervention program that has been certified by the domestic violence state coordinating council, pursuant to § 38-12-110.

SECTION 7. Tennessee Code Annotated, Section 38-12-109, is amended by deleting subsection (a) and substituting:

The administrative office of the courts and the domestic violence state coordinating council shall establish a policy regarding, and a continuing education curriculum concerning, domestic violence and assault and shall provide continuing education on domestic violence and assault to all judges and court personnel throughout the state who are likely to encounter situations of domestic violence and assault. The administrative office of the courts may adopt the policy and training curriculum developed by the domestic violence state coordinating council, and may revise the policy and training curriculum at its discretion. The continuing education must be for a period of at least twelve (12) hours per year and is in addition to the training required by § 36-6-702.

SECTION 8. This act takes effect July 1, 2025, the public welfare requiring it.